



CHAPTER xciii.

An Act to authorise the Metropolitan Railway Company to execute works and to acquire lands to extend the time for the compulsory purchase of certain lands and the completion of certain works to authorise the Company to raise further moneys to confer further powers on the Company and the Metropolitan and Great Central Joint Committee and for other purposes.

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[10th May 1929.]

WHEREAS it is expedient that the Metropolitan Railway Company (in this Act referred to as "the Company") should be empowered to construct the new works in this Act described including a widening of their railway between Harrow-on-the-Hill and Wembley Park in the county of Middlesex :

And whereas it is expedient that the Company should be authorised to acquire lands and easements for the purposes of the said new works and for the other purposes of their undertaking :

And whereas it is expedient that the periods now limited for the compulsory purchase of certain lands and the completion of certain works by the Company should be extended as provided by this Act :

And whereas it is expedient that the Company should be empowered to raise further money and to apply their funds to the purposes of this Act and for the general purposes of their undertaking :

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And whereas it is expedient that the acquisition of lands already acquired respectively by the Company and by the Metropolitan and Great Central Joint Committee (in this Act referred to as “ the Joint Committee ”) should be sanctioned and confirmed :

And whereas it is expedient that the Joint Committee should be empowered to acquire certain lands in this Act described for the purposes of their undertaking :

And whereas it is expedient that the other powers contained in this Act should be conferred upon the Company and that the other provisions contained in this Act should be made :

And whereas plans showing the lands required or which may be taken or used compulsorily for the purposes or under the powers of this Act such plans showing the lines or situation of the said new works and sections showing the levels of such works with a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the respective clerks of the peace for the administrative county of London and the counties of Middlesex Hertford and Buckingham and are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Metropolitan Railway Act 1929.

Act divided
into Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands &c.

Part IV.—Extension of time.

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Part V.—Finance.

Part VI.—Powers in respect of undertaking of
Joint Committee.

Part VII.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say) :—

Incorporation of
general
Acts.

The Lands Clauses Acts :

Provided that notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 any question of disputed compensation under this Act or any Act incorporated herewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon by the Company or the Joint Committee as the case may be and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party ;

The Railways Clauses Consolidation Act 1845 :

Provided that the expressions “ the parish clerks ” and “ clerks of the several parishes ” in sections 7 8 and 9 of the last mentioned Act shall as regards the county of London mean the town clerks of the metropolitan boroughs ;

Part I (relating to construction of a railway) and
Part II (relating to extension of time) of the
Railways Clauses Act 1863 ;

The provisions of the Companies Clauses Consolidation Act 1845 (so far as the same are not inconsistent with the provisions of any special enactment relating to the Company) with respect to the following matters (namely) :—

The distribution of the capital of the
Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the
means of enforcing the payment of calls ;

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The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

And Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

“ The Company ” means the Metropolitan Railway Company;

“ The Joint Committee ” means the Metropolitan and Great Central Joint Committee;

“ The Act of 1911 ” means the Metropolitan Railway Act 1911;

“ The Act of 1913 ” means the Metropolitan Railway Act 1913;

“ The Extension of Time Act 1915 ” means the Special Acts (Extension of Time) Act 1915;

“ The Act of 1923 ” means the Metropolitan Railway (Various Powers) Act 1923;

“ The Act of 1926 ” means the Metropolitan Railway Act 1926;

- “ The widening ” means the widening (Work No. 1) described in the section of this Act of which the marginal note is “ Description of new works ”; A.D. 1929.
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- “ The new works ” means the works described in the section of this Act of which the marginal note is “ Description of new works ”;
- “ The works ” means the works authorised by this Act;
- “ The limits of deviation ” means the limits of deviation shown upon the deposited plans;
- “ The tribunal ” means the arbitrator to whom any question of disputed compensation is referred under the provisions of this Act or any Act incorporated herewith;
- “ Stock ” and “ stockholder ” includes “ share ” and “ shareholder.”

PART II.

WORKS.

5. Subject to the provisions of this Act the Company may make and maintain in the lines or situation and according to the levels shown on the deposited plans and sections the new works hereinafter described with all proper stations tunnels platforms lines of rail sidings roads bridges approaches buildings machinery apparatus electrical appliances subways lifts escalators inclines stairs works and conveniences connected therewith or incidental thereto. Power to make works.

6. The new works hereinbefore referred to and authorised by this Act are— Description of new works.

In the county of Middlesex—

Work No. 1. A widening of and on the north side of the Company's country extension line from Baker Street to Aylesbury and beyond (2 miles 4 furlongs and 7 chains or thereabouts in length) situate partly in the urban district of Harrow-on-the-Hill partly in the urban district of Wealdstone and partly in the urban district of Wembley commencing in the urban district of Harrow-on-the-Hill by a

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junction with the said extension line at a point 50 yards or thereabouts measured along the centre of the said extension line in an easterly direction from a point in the centre of the said extension line beneath the east face of the east parapet of the bridge carrying Station Road over the said extension line and terminating in the urban district of Wembley by a junction with the said extension line at a point at or near the western end of the platforms numbered 3 and 4 of the Company's Wembley Park Station :

In the administrative county of London—

Work No. 2 An enlargement of the tunnel of the Company's Inner Circle Railway (2 chains or thereabouts in length) situate wholly in the metropolitan borough of St. Marylebone commencing at a point beneath Marylebone Road 37 yards or thereabouts measured in a westerly direction along the centre of the said road from the point of intersection of Baker Street and Upper Baker Street with Marylebone Road and terminating at a point beneath Marylebone Road 7 yards or thereabouts measured in an easterly direction along the centre of the said road from the said point of intersection ;

Work No. 3 An enlargement of the tunnel of the Company's Inner Circle Railway (2 chains or thereabouts in length) situate partly in the metropolitan borough of St. Marylebone and partly in the metropolitan borough of St. Pancras commencing at a point beneath Euston Road 29 yards or thereabouts measured in a westerly direction along the centre of the said road from the point of intersection of Cleveland Street with Euston Road and terminating at a point beneath Euston Road 15 yards or thereabouts measured in an easterly direction along the centre of the said road from the said point of intersection ;

Work No. 4 An enlargement of the tunnel of the Company's Inner Circle Railway (3 chains or

thereabouts in length) situate wholly in the metropolitan borough of St. Pancras commencing at a point beneath Euston Road 73 yards or thereabouts measured in a north-easterly direction along the centre of the said road from the point of intersection of George Street and Gower Street with Euston Road and terminating at a point beneath Euston Road 139 yards or thereabouts measured in a north-easterly direction along the centre of the said road from the said point of intersection; A.D. 1929.

Work No. 5 An enlargement of the tunnel of the Company's country extension line from Baker Street to Aylesbury and beyond (2 chains or thereabouts in length) situate wholly in the metropolitan borough of St. Marylebone commencing at a point 41 yards or thereabouts measured in a northerly direction along the centre of the said extension line from a point on the centre of the said extension line beneath the southern wall of the Company's Marlborough Road Station and terminating at a point upon the said extension line 85 yards or thereabouts measured in a northerly direction along the centre of the said extension line from the said point beneath the said southern wall;

Work No. 6 An enlargement of the tunnel of the Company's country extension line from Baker Street to Aylesbury and beyond (2 chains or thereabouts in length) situate wholly in the metropolitan borough of Hampstead commencing at a point 59 yards or thereabouts measured in a southerly direction along the centre of the said extension line from a point in the centre of the said extension line beneath the northern wall of the Company's Swiss Cottage Station and terminating at a point upon the said extension line 103 yards or thereabouts measured in a southerly direction along the centre of the said extension line from the said point beneath the said northern wall;

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Work No. 7 An alteration and lengthening of the bridge carrying St. Chad's Place over the Company's Inner Circle Railway (1·27 chains or thereabouts in length) situate wholly in the metropolitan borough of St. Pancras commencing at a point 24 yards or thereabouts measured in a south-westerly direction along the centre of St. Chad's Place from the point of its intersection with Wicklow Street and terminating at a point 4 yards or thereabouts measured in a north-easterly direction along the centre of St. Chad's Place from such point of intersection;

Work No. 8 An alteration and lengthening of the bridge carrying Wicklow Street over the Company's Inner Circle Railway (1·36 chains or thereabouts in length) situate wholly in the metropolitan borough of St. Pancras commencing at the point of intersection of St. Chad's Place with Wicklow Street and terminating at a point 30 yards or thereabouts measured in a south-easterly direction along the centre of Wicklow Street from such point of intersection.

Power to
open surface
of streets.

7.—(1) Subject to the provisions of this Part of this Act the Company may for the purpose of constructing the works enter upon open break up and interfere with so much of the surface of those parts of the streets hereinafter mentioned as is within the limits of deviation.

The parts of the streets in this subsection before referred to are—

In the administrative county of London—

Metropolitan borough of St. Marylebone—

- (i) Marylebone Road between a point 60 yards or thereabouts measured in a westerly direction along the centre of that road from the point of its intersection with Baker Street and Upper Baker Street and a point 10 yards or thereabouts measured in an easterly direction along the centre of Marylebone Road from such point of intersection :

- (ii) Baker Street between its point of intersection with Marylebone Road and a point 50 yards or thereabouts measured in a southerly direction along the centre of Baker Street from such point of intersection : A.D. 1929. —
- (iii) Upper Baker Street between its point of intersection with Marylebone Road and a point 50 yards or thereabouts measured in a northerly direction along the centre of Upper Baker Street from such point of intersection :
- (iv) Finchley Road between a point 60 yards or thereabouts measured in a northerly direction along the centre of that road from the point of its intersection with Queens Road and a point 120 yards or thereabouts measured in a northerly direction along the centre of Finchley Road from such point of intersection.

Metropolitan borough of St. Marylebone and metropolitan borough of St. Pancras—

- (i) Euston Road between a point 32 yards or thereabouts measured in a westerly direction along the centre of that road from the point of its intersection with Cleveland Street and a point 25 yards or thereabouts measured in an easterly direction along the centre of Euston Road from such point of intersection :
- (ii) Cleveland Street between the point of its intersection with Euston Road and a point 17 yards or thereabouts measured in a south-easterly direction along the centre of Cleveland Street from such point of intersection.

Metropolitan borough of St. Pancras—

- (i) Euston Road between a point 70 yards or thereabouts measured in a north-easterly direction along the centre of that road from the point of its intersection with George Street and Gower Street and a point 160 yards or thereabouts measured in a north-easterly direction along the centre of Euston Road from such point of intersection.

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Metropolitan borough of Hampstead—

- (i) Finchley Road between a point 60 yards or thereabouts measured in a southerly direction along the centre of that road from the point of its intersection with Belsize Road and a point 120 yards or thereabouts measured in a southerly direction along the centre of Finchley Road from such point of intersection.

(2) Subject to the provisions of this Part of this Act the Company may for the purpose of enlarging and improving the Aldersgate and Barbican Station of the Company enter upon open break up and interfere with so much of the surface of those parts of the streets hereinafter mentioned as is within the limits of land which may be acquired or used shown upon the deposited plans.

The parts of the streets in this subsection before referred to are—

In the administrative county of London—

Metropolitan borough of Finsbury—

- (i) The street forming the south-eastern side of Charterhouse Square between the point of its intersection with Hayne Street and a point twenty yards or thereabouts measured in a north-easterly direction along the centre of the first mentioned street from such point of intersection :

- (ii) Hayne Street between the point of its intersection with the street forming the south-eastern side of Charterhouse Square and a point ten yards or thereabouts measured in a south-easterly direction along the centre of Hayne Street from such point of intersection.

(3) In subsections (1) and (2) of this section the expression “the point of its intersection” where used in reference to any road which intersects or joins another road means the point at which lines drawn along the centre of each of such roads (and if necessary continued) would intersect each other.

(4) Seven days before breaking up or interfering with any portion of the surface of the said streets under the powers of this section the Company shall serve notice in writing on the Commissioner of Police of the metropolis and make such arrangements with him as may be necessary so as to cause as little interference with traffic as may be reasonably possible. A.D. 1929.

8.—(1) The Company during the execution of Works Nos. 7 and 8 by this Act authorised may for the purpose of executing such works break up and also temporarily stop up divert and interfere with the parts of the streets hereinafter mentioned and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bonâ fide going to or returning from any land or premises in the streets or parts of streets from passing along and using the same. Temporary stoppage of streets.

The parts of the streets in this section before referred to are—

In the administrative county of London—

Metropolitan borough of St. Pancras—

- (i) Wicklow Street between St. Chad's Place and Field Street :
- (ii) Field Street between the point of its intersection with Wicklow Street and a point 33 yards or thereabouts measured in a north-easterly direction along the centre of Field Street from such point of intersection :
- (iii) St. Chad's Place between a point 37 yards or thereabouts measured in a south-westerly direction along the centre of St. Chad's Place from the point of its intersection with Wicklow Street and a point 20 yards or thereabouts measured in a north-easterly direction along the centre of St. Chad's Place from such point of intersection.

(2) In subsection (1) of this section the expression "the point of its intersection" where used in reference to any road which intersects or joins another road means the point at which lines drawn along the centre of each of such roads (and if necessary continued) would intersect each other.

(3) The Company shall provide reasonable access for foot passengers bonâ fide going to or returning from any such land or premises.

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Power to
deviate
laterally.

9. In the execution of the new works but subject to the provisions of this Act the Company may deviate laterally from the lines or situation thereof shown on the deposited plans to any extent within the limits of deviation.

Power to
deviate
vertically.

10. In the execution of the new works but subject to the provisions of this Act the Company may deviate vertically from the levels thereof marked on the deposited sections to such an extent as may be found necessary or convenient Provided always that nothing contained in this section shall be deemed to authorise the Company to deviate upwards from the levels of the new works as shown on the deposited sections to a greater extent than five feet.

Height and
span of
bridge.

11. The Company may make the arch or super-structure of the bridge for carrying the new works over the road next hereinafter mentioned of any height and span not less than the height and span hereinafter mentioned in connection therewith (that is to say) :—

Nos. on deposited plans.	Parish or other area.	Description of road.	Height.	Span.
WORK NO. 1.				
25	Wembley	Public road Forty Lane.	16 feet	60 feet

Width of
roadways
over bridges.

12. The Company may make the roadway over the bridges by which the following roads will be carried over the new works of such width between the fences thereof as the Company think fit not being less than the respective widths hereinafter mentioned in connection therewith respectively (that is to say) :—

No. on plans.	Parish or other area.	Description of roadway.	Width of roadway.
WORK NO. 1.			
2	Wealdstone	Public road Sheepcote Road	40 feet
21	Wembley	Public road Preston Road	35 feet

13. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway under which the works shall be constructed except so far as the level of such road or highway is permanently altered :

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—
 Company not liable to repair surface of roads level of which is not permanently altered.

Provided that nothing in this section shall relieve the Company from any liability which they were under immediately before the passing of this Act for the maintenance of any such road or highway.

14. If the new works be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same shall cease except as to so much thereof as is then completed.

Period for completion of works.

15. And whereas in order to avoid in the execution and maintenance of the works injury to the houses and buildings within one hundred feet thereof it may be necessary to underpin or otherwise to strengthen the same Therefore the Company at their own cost and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions in substitution for the provisions of the London Building Act 1894 relating to underpinning works shall have effect (that is to say) :—

Underpinning of houses near works.

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company :
- (3) If any owner lessee or occupier of any such house or building or the Company shall within seven days after the giving of such notice give a counter-notice in writing disputing the necessity of such underpinning or strengthening the question of

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the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Minister of Transport and the Arbitration Act 1889 shall apply to the reference :

- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this section :
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the arbitrator the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 :

(8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Lands Clauses Acts as modified by this Act : A.D. 1929.

(9) Nothing in this section contained shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

16. The Company may subject to the provisions of this Act use for the discharge of any water pumped or found by them during the construction of the works any available stream or watercourse or any sewer or drain of the London County Council or the council of any metropolitan borough or urban district in or through which the works may be constructed or pass and for that purpose may lay down take up and alter conduits pipes and other works and make any convenient connections with any such stream watercourse sewer or drain within the limits of deviation : Use of sewer for removing water.

Provided always that the Company shall not make any opening into any such sewer or drain save in accordance with plans reasonably approved by and under the superintendence (if the same shall be given) of the London County Council or the council of any metropolitan borough or urban district (as the case may be) in whom the said sewer or drain shall be vested :

Provided also that any water so discharged shall be as free as may be reasonably practicable from mud or solid or offensive matter.

17.—(1) The widening shall for all purposes including the purpose of tolls rates and charges form part of the railway of the Company of which it forms a widening. Widening to form part of railway widened and works to form part of undertaking of Company.

(2) The works shall form part of the undertaking of the Company.

18.—(1) Section 26 (For protection of Postmaster-General) of the Metropolitan Railway Act 1901 shall apply in relation to the working by electrical power of the new works authorised by this Act. For protection of Postmaster-General.

(2) If the execution of the works involves the removal or alteration of any Post Office letter box or telephone call box the Company shall not remove or alter such box but shall give notice to the Postmaster-General of the removal or alteration required and the Postmaster-

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General provisions for protection of gas water hydraulic power and electric companies and public bodies.

19.—(1) Before commencing the works in or under any street in or under which any mains pipes syphons plugs wires or other works (hereinafter called "apparatus") of any local authority company body or person whose apparatus may be interfered with during the construction of the works are situate (each such local authority company body or person being hereinafter referred to as "the protected company") the Company shall deliver to the protected company plans sections and descriptions of all works so proposed to be executed describing the proposed manner of executing the same and such plans sections and descriptions shall be delivered to the protected company at least twenty-eight days before the commencement of any such work.

If it should appear to the protected company that such works will interfere with or endanger any of their apparatus or impede the supply of water gas hydraulic power or electrical energy the protected company may give notice to the Company to lower or otherwise alter the position of such apparatus or to support the same or to substitute temporarily or otherwise other apparatus in such manner as may be considered necessary and to lay or place under any apparatus cement concrete or other like substance and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substance (hereinafter called "protective works") shall be settled as hereinafter provided and the protective works shall save as hereinafter provided be done and executed by and at the expense of the Company but to the satisfaction and under the superintendence of the engineer of the protected company and the reasonable costs charges and expenses of such superintendence shall be paid by the Company And if any protected company by notice in writing to the Company within fourteen days after the receipt by the protected company of notice of the intended commencement by the Company of any such works of the Company so require the protected company may by their own engineer or workmen do and execute protective works so far as they affect

the apparatus of the protected company and the Company shall on the completion thereof pay to the protected company the reasonable expenses incurred by them in the execution of such protective works.

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(2) In the event of the plans sections and descriptions as delivered to the protected company as aforesaid not being objected to within twenty-eight days from such delivery the works shown and described thereon shall be executed in strict accordance therewith.

(3) The protected company may if they deem fit employ watchmen or inspectors to watch and inspect any works whereby any apparatus of the protected company will be interfered with or affected during construction repair or renewal and the reasonable wages of such watchmen or inspectors shall be borne by the Company and be paid by them to the protected company.

(4) If any interruption in the supply of water gas hydraulic power or electrical energy by the protected company shall without the written authority of the protected company be in any way occasioned either by reason of the exercise of the powers of this Act or by the act or default of the Company or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Company shall forfeit and pay to the protected company for the use and benefit of the protected company a sum not exceeding ten pounds for every hour during which such interruption shall continue.

(5) The expense of all repairs or renewals of any apparatus of the protected company or any works in connection therewith which may at any time hereafter be rendered necessary either by reason of the exercise of the powers of this Act or by the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them or rendered necessary by reason of any subsidence resulting from the works of the company whether during the construction of the works or at any time thereafter shall be borne and paid by the Company.

(6) It shall be lawful for the protected company and the engineers workmen and others in their employ at all times when it may be necessary to enter upon the lands of the Company at any point or place where there is existing apparatus of the protected company and to do

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A.D. 1929. — all such works in and upon such lands as may be necessary for repairing maintaining or removing or replacing or extending such apparatus under or over the same lands and notwithstanding the stopping up temporarily of any public street or place under the powers of this Act to exercise the same rights of access as they now enjoy to all or any apparatus of the protected company situate in or under any such street or place Provided always that in so doing the protected company their engineers or workmen or others in the employ of the protected company shall not interrupt the user of any of the works of the Company by this Act or any other Act authorised Provided also that the protected company shall make good and reimburse to the Company all damages to such last-mentioned works occasioned by the exercise of the powers by this section reserved to the protected company.

(7) If any difference shall arise with respect to any matter under this section between the Company and the protected company or their respective engineers or concerning any plans sections or descriptions to be delivered to the protected company under the foregoing provisions of this section the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of the Company and the protected company or either of them by the President of the Institution of Civil Engineers under the provisions of the Arbitration Act 1889 and in settling any question under this section an arbitrator shall have regard to any duties or obligations which the protected company may be under in respect of their apparatus and may if he thinks fit require the Company to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the protected company's apparatus is used.

(8) The Company shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

For protec-
tion of
Westmin-
ster Bank
Limited.

20. Notwithstanding anything contained in the Act of 1926 or shown upon the plans deposited in relation to the Bill for that Act (in this section referred to as "the said plans") the following provisions for the protection of the Westminster Bank Limited (in this section

called "the bank") shall unless otherwise agreed between the Company and the bank apply and have effect (that is to say) :— A.D. 1929,
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- (1) Except as mentioned in subsection (2) of this section the Company shall not enter upon take or use any part of the properties (in this section referred to as "the said properties") numbered on so much of the said plans as relates to Railway No. 1 by the Act of 1926 authorised 11 and 12 in the metropolitan borough of St. Marylebone :
- (2) Notwithstanding anything contained in subsection (1) of this section the Company may purchase and take and the bank shall if so required by the Company sell and grant to them an easement or right of constructing maintaining repairing and using under the said properties the railways and works by the Act of 1926 authorised at a depth of not less than 40 feet measured from the crown of the tunnel to the surface :
- (3) The Company may serve on the bank notice to treat for any easement or right which they desire to acquire under subsection (2) of this section and the provisions of the Lands Clauses Acts shall extend and apply to such easement or right as fully as if the same were lands within the meaning of those Acts except that no such easement or right shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 :
- (4) The provisions of section 46 (For protection of owners of certain premises) of the Act of 1926 shall extend and apply for the protection of the bank and the said properties as though a description of the said properties were contained in the first column of the Third Schedule to that Act and the bank were persons mentioned or described in the second column of that schedule as owners of the said properties.

21. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in

For protection of Metropolitan Water Board.

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— (that is to say) :—

- (1) The provisions contained in the section of this Act whereof the marginal note is "General provisions for protection of gas water hydraulic power and electric companies and public bodies" (in this section referred to as "the protective section") shall be read and have effect as if the board were a protected company within the meaning of that section :
- (2) The Company shall not raise sink or otherwise alter the position of any mains pipes valves hydrants syphons plugs or other works or apparatus (in this section referred to as "apparatus") of the board or alter the level of any street or road in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet (unless the Company shall in such case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the board) or of more than five feet :
- (3) The Company shall not except by arrangement with the board execute or do any work which may involve any interference with the continuous supply of water by the board during the months of May June July August and September :
- (4) Where any inclined tunnel or shaft is constructed by the Company for the purpose of any stair or escalator within seven feet six inches measured in any direction from the apparatus of the board the Company shall execute such works as the board may reasonably require for supporting such apparatus and if it be reasonably necessary so to do the board may substitute steel tubes encased in concrete for any mains or pipes within the said distance from such tunnel or shaft and the Company shall on demand repay to the board the reasonable cost incurred by them in so doing :
- (5) Where any part of the works authorised by this Act shall pass within twenty feet of any works or apparatus of the board the Company

shall not deviate upwards from the levels shown on the deposited sections without the consent of the board such consent not to be unreasonably withheld and except upon and subject to such terms and conditions as the board may reasonably attach to any consent given by them : A.D. 1929.

- (6) Notwithstanding anything contained in this Act or shown on the deposited plans or sections the Company shall not construct any station booking hall subway tunnel escalator shaft or work of a like nature under any street or road in such manner as to leave in such street or road insufficient space for the reasonably convenient accommodation of any apparatus of the board in or under such street or road and of additional apparatus to be hereafter laid in or under such street or road consisting of two mains each having an internal diameter of not more than twenty-four inches :
- (7) If any difference shall arise under this section between the Company and the board such difference shall be settled in accordance with the provisions of subsection (7) of the protective section.

22. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (hereinafter in this section called "the council") (that is to say) :— For protection of London County Council.

- (1) Notwithstanding anything contained in this Act sections 13 and 14 of the Metropolitan Railway Act 1898 subsections (3) and (6) of section 15 of the Act of 1911 and subsections (9) (10) (11) and (13) of section 40 of the Act of 1926 are incorporated with and form part of this section and shall extend and apply to the lands which the Company are by this Act authorised to acquire and to any works matters or things by this Act authorised as fully and effectually to all intents and purposes as if those provisions had been repeated and expressly re-enacted in this section with reference thereto :

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- (2) The provisions of the London Building Acts 1894 to 1928 and any Act amending the same shall except so far as the same may be expressly varied by this Act apply to the execution by the Company under the powers of this Act of any works in the administrative county of London (hereinafter in this section called "the county") and the Company shall save as aforesaid be entitled to the benefit of any special exemptions in favour of railway companies in the said London Building Acts contained but no such exemptions shall be deemed to apply to such part of any building as shall be used or intended to be used for other than railway purposes :
- (3) The Company shall not construct under any street or roadway in the county any part of the new works which will be within twenty-five feet of the surface of such street or roadway except in accordance with plans and sections submitted to and approved by the council but the approval of the council shall not be unreasonably withheld :
- (4) If the Company construct reconstruct lengthen or alter any bridges structures or works over their Inner Circle Railway at St. Chad's Place or Wicklow Street such construction reconstruction lengthening or alteration shall be carried out only in accordance with plans sections and specifications submitted to and approved by the council but the approval of the council shall not be unreasonably withheld :
- (5) Upon the submission of any plans and sections or as the case may be plans sections and specifications under the provisions of subsections (3) or (4) of this section and before approving the same the council shall with all reasonable dispatch consult with the council of the metropolitan borough in which the works are or will be situate and for this purpose the council shall afford such council reasonable facilities for inspecting the plans sections and specifications relating to such works :

(6) The approval by the council of any plans or superintendence by the council of any work under the provisions of this section shall not exonerate the Company from any liability or affect any claim for damages under this section or otherwise : A.D. 1929. —

(7) In the event of the council omitting to express their disapproval of any plans sections or specifications within six weeks after the same shall have been submitted to the council in pursuance of this section the council shall be deemed to have approved the same :

(8) Except as regards any difference which may arise under the provisions of section 13 of the Metropolitan Railway Act 1898 as incorporated by subsection (1) of this section or under the provisions of subsection (3) of section 15 of the Act of 1911 respectively as so incorporated or under the provisions of subsection (2) of this section any difference which may arise under the provisions of this section shall be from time to time referred to and determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

23. The following provisions shall unless otherwise agreed between the London County Council (in this section called "the council") and the Company have effect for the protection of the sewer of the council known as the King's Scholars Pond Sewer in addition to the provisions incorporated in this Act in that behalf (that is to say) :— For protection of King's Scholars Pond Sewer.

(1) All expenses including supervision and all incidental charges reasonably incurred by the council in maintaining repairing or renewing any new altered or substituted sewer which may be necessary in consequence of the Company's works shall from time to time be paid by the Company to the council :

(2) The Company shall at all times give to the council full free and uninterrupted access to

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any such new altered or substituted sewer and every reasonable facility for the inspection maintenance alteration and repair thereof :

- (3) Any additional cost to which the council may be put in consequence of the construction of the works by this Act authorised in the maintenance or management of such new altered or substituted sewer shall be paid from time to time to the council by the Company.

For protection of St. Marylebone Borough Council.

24. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the mayor aldermen and councillors of the metropolitan borough of St. Marylebone (in this section called "the council") shall except so far as may be otherwise agreed in writing between the Company and the council apply and have effect in reference to the exercise of the powers of this Act and the enactments incorporated therewith (that is to say) :—

- (1) (i) Before commencing to make any part of the works which will involve interference with a public highway repairable by the council the Company shall consult the council as to the time when the works shall be commenced and as to the extent of the surface of the highway that it may be reasonably necessary for the Company to occupy in the construction of the works and as to the conditions under which they shall be constructed so as to reduce so far as possible inconvenience to the public and the works shall not be made and the surface of the highway shall not be occupied by the Company except at the time to the extent and in accordance with the conditions agreed between the Company and the council or in default of agreement determined by arbitration ;

(ii) In the construction of any part of the works which will involve interference with a public highway repairable by the council or which will be within ten feet of the surface of such highway the roof of the work shall be of girder construction and the Company shall not deviate upwards from the levels shown on the deposited sections without the consent of the

council but such consent shall not be unreasonably withheld and in no case shall the works be constructed so as to leave a space of less than two feet between the top of any girder and the surface of such highway or in the area intervening between girders of less than four feet between the outer surface of the crown of the work and the surface of such highway;

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(iii) The Company shall not open or make any ventilators air shafts or other similar openings in the roadway or footway of any public highway repairable by the council;

(iv) The works so far as they involve any interference with any public highway repairable by the Council shall after the commencement thereof be carried on so far as reasonably practicable continuously day and night and the Company shall use materials of such description and shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference;

(v) The works shall be constructed maintained and kept in proper repair by the Company so as at all times to support not only the ordinary traffic and any exceptional traffic lawfully using the streets within the metropolitan borough of St. Marylebone (in this section called "the borough") but also any apparatus which the council or their contractors may reasonably use for repairing the streets under the control of or repairable by the council and the Company shall indemnify the council against and make good to them all costs and expenses the council may reasonably incur or be put to in the maintenance or repair of any such last-mentioned streets by reason of any defect or insufficiency of the strength of the works or any neglect properly and effectually to construct maintain and keep in good repair the same or by reason of the construction of the works;

(vi) It shall be lawful for the surveyor or other officer of the council duly appointed for

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the purpose at all reasonable times to enter upon and inspect any of the works in or under any public highway in the borough or repairable by the council during the execution thereof and the Company shall give to such surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of the works is attended with danger to any sewer drain or work belonging to or under the jurisdiction or control of the council the Company shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto and in the event of any difference arising between the council and the Company with reference thereto such difference shall be referred to arbitration;

(vii) The Company shall not alter disturb or in any way interfere with any refuge sewer drain main pipe wire lamp column or other property or works of the council or under their control or repairable by them without their consent in writing which shall not be unreasonably withheld and any alteration diversion or reconstruction of any such refuge sewer drain main pipe wire lamp column or other property or works that may be necessary shall be made by the council or the Company as the former shall think fit and any costs and expenses reasonably incurred by the council in so doing shall be repaid to the council by the Company;

(viii) If any extra expense be incurred by the council for the repair of any street or road of the council by reason of the extraordinary traffic in the making or construction of the works or by reason of the diversion thereto of traffic in consequence of the making or construction of such works the Company shall repay the amount of such expenses to the council;

(ix) The Company shall not without the consent of the council which shall not be unreasonably withheld permit during the

construction of the works any cart or vehicle to be loaded or unloaded in Marylebone Road Baker Street Upper Baker Street Finchley Road Euston Road Great Portland Street or Cleveland Street with any subsoil or materials removed or required in connection with the works; A.D. 1929.

(x) The Company shall not deposit any subsoil or materials anywhere within the borough so as to cause any nuisance or obstruction to any person using the streets roads or footways within the borough;

(xi) The Company shall not discharge any water from any of the works into any sewer or drain vested in or under the control of the council except with the consent of the council in writing which shall not be unreasonably withheld and subject to such terms and conditions (including the taking of steps to remove so far as may be reasonably practicable from water so discharged any gravel soil or other solid substance or matter in suspension) as the council may reasonably impose and any reasonable expenditure which may be incurred by the council as a result and in consequence of the discharge of any such water by the Company into any of the said sewers or drains shall be repaid to the council by the Company;

(xii) The Company shall within 24 hours of the discovery by them of the presence of water in the workings during construction of the works in such quantities as to necessitate any special measures for its removal give written notice of such discovery to the surveyor of the council and afford him or other the officer or servant of the council duly appointed for the purpose all reasonable facilities from time to time for entering upon and inspecting the works in order that the council may take such measures as they may deem to be necessary for the protection of highways sewers drains buildings and other matters or things within their control;

(xiii) Where any part of any road or footway repairable by the council shall have been

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broken up or disturbed by the Company the Company shall make good the subsoil foundations and surface of such road or footway to the reasonable satisfaction of the council. Provided that the reinstatement of any such road or footway broken up or disturbed by the Company shall in the first instance be of a temporary nature only and the permanent reinstatement to the reasonable satisfaction as aforesaid of any such road or footway shall be carried out by the council and the Company shall repay to the council the reasonable costs incurred by the council in so doing;

(xiv) It shall not be lawful for the Company in the exercise of the powers of this Act to place any hoardings on any part of any public highway in the borough except for such period as may be necessary and then only in such manner as shall be reasonably necessary and no such hoarding shall be erected except under the provisions of the Metropolis Management Act 1855 or any amendment thereof and the Company shall not affix exhibit or permit to be affixed or exhibited upon any such hoarding as aforesaid any advertisement or placard which is visible from the streets unless the same shall have been approved in writing by the council and if any such advertisement or placard be affixed or exhibited without such approval the council and their authorised officers may remove the same;

(xv) The Company shall at all times during the progress of the erection construction reconstruction or alteration of the works comply with all reasonable requirements of the council as to the provision of necessary barriers hoardings and other precautions for the due protection of the public and for the lighting and watching of such barriers and hoardings. Provided that nothing in this section contained shall be deemed to impose any liability on the council for any loss or damage which may happen to or be caused by reason of any act carried out in accordance with the requirements

of the council or work done under their supervision and the Company shall indemnify and save harmless the council in respect of any claims made on the council for loss or damage occasioned by reason of any act default or omission of the Company or their contractors agents servants or workmen in connection with the works;

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(xvi) The Company shall make full compensation to the council for any subsidence of or damage to any road or footway sewer drain or other work vested in under the control of or repairable by the council which may be caused by or in consequence of any act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the works or at any time thereafter;

(xvii) Any difference which may arise from time to time under the provisions of this subsection between the council and the Company shall be referred to and determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference:

- (2) So far as relates to all property acquired by the Company in the borough section 133 of the Lands Clauses Consolidation Act 1845 shall be read construed and applied as if references to the general rate were substituted for all references therein to the poor rate and the assessments on which any payment made by the Company under the said section 133 is based shall be inserted in the valuation list and any such payment shall be taken into account for the purpose of ascertaining the proceeds of any rate:
- (3) For the removal of doubt it is hereby declared that nothing in this Act shall empower the Company to afford a supply of electricity within or for use within any building office dwelling flat tenement hereditament or other premises upon lands acquired by the Company under the provisions of this Act which is not occupied by the

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Company Provided nevertheless that nothing in this section contained shall be deemed to or shall prejudice or derogate from any powers conferred on or exerciseable by the Company under any other Act to afford a supply of electricity in respect of any property or premises (other than as aforesaid) forming part of the undertaking of the Company.

For protec-
tion of
St. Pancras
Borough
Council.

25. Notwithstanding anything contained in this Act or shewn on the deposited plans and sections the following provisions for the protection and benefit of the mayor aldermen and councillors of the metropolitan borough of St. Pancras (in this section called "the council") shall except so far as may be otherwise agreed in writing between the Company and the council apply and have effect in reference to the exercise of the powers of this Act and the enactments incorporated therewith (that is to say) :—

(1) (i) Before commencing to make any part of the works which will involve interference with a public highway repairable by the council the Company shall consult the council as to the time when the works shall be commenced and as to the extent of the surface of the highway that it may be reasonably necessary for the Company to occupy in the construction of the works and as to the conditions under which they shall be constructed so as to reduce so far as possible inconvenience to the public and the works shall not be made and the surface of the highway shall not be occupied by the Company except at the time to the extent and in accordance with the conditions agreed between the Company and the council or in default of agreement determined by arbitration;

(ii) In the construction of any part of the works which will involve interference with a public highway repairable by the council or which will be within ten feet of the surface of such highway the Company shall not deviate upwards from the levels shown on the deposited sections without the consent of the council but such consent shall not be unreasonably withheld and in no case shall

any part of any of the said works be constructed so as to leave a space of less than fifteen inches between the outer surface of the crown of the work and the surface of such highway;

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(iii) The Company shall not open or make any ventilators air shafts or other similar openings in the roadway or footway of any public highway repairable by the council;

(iv) The works so far as they involve any interference with any public highway repairable by the council shall after the commencement thereof be carried on so far as reasonably practicable continuously day and night and the Company shall use materials of such description and shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference;

(v) The works shall be constructed maintained and kept in proper repair by the Company so as at all times to support not only the ordinary traffic and any exceptional traffic lawfully using the streets within the metropolitan borough of St. Pancras (in this section called "the borough") but also any apparatus which the council or their contractors may reasonably use for repairing the streets under the control of or repairable by the council and the Company shall indemnify the council against and make good to them all costs and expenses the council may reasonably incur or be put to in the maintenance or repair of any such last-mentioned streets by reason of any defect or insufficiency of the strength of the works or any neglect properly and effectually to construct maintain and keep in good repair the same or by reason of the construction of the works;

(vi) It shall be lawful for the surveyor or other officer of the council duly appointed for the purpose at all reasonable times to enter upon and inspect any of the works in or under any public highway in the borough or repairable by the council during the

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execution thereof and the Company shall give to such surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of the works is attended with danger to any sewer drain or work belonging to or under the jurisdiction or control of the council the Company shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto and in the event of any difference arising between the council and the Company with reference thereto such difference shall be referred to arbitration;

(vii) The Company shall not alter disturb or in any way interfere with any refuge sewer drain main pipe wire lamp column or other property or works of the council or under their control or repairable by them without their consent in writing which shall not be unreasonably withheld and any alteration diversion or reconstruction of any such refuge sewer drain main pipe wire lamp column or other property or works that may be necessary shall be made by the council or the Company as the former shall think fit and any costs and expenses reasonably incurred by the council in so doing shall be repaid to the council by the Company;

(viii) If any extra expense be incurred by the council for the repair of any street or road of the council by reason of the extraordinary traffic in the making or construction of the works or by reason of the diversion thereto of traffic in consequence of the making or construction of such works the Company shall repay the amount of such expenses to the council;

(ix) The Company shall not without the consent of the council which shall not be unreasonably withheld permit during the construction of the works any cart or vehicle to be loaded or unloaded in George Street Gower Street Euston Road St. Chad's Place

Cleveland Street Field Street or Wicklow Street A.D. 1929.
with any subsoil or materials removed or
required in connection with the works ;

(x) The Company shall not deposit any subsoil or materials anywhere within the borough so as to cause any nuisance or obstruction to any person using the streets roads or footways within the borough ;

(xi) The Company shall not discharge any water from any of the works into any sewer or drain vested in or under the control of the council except with the consent of the council in writing which shall not be unreasonably withheld and subject to such terms and conditions as the council may reasonably impose and any reasonable expenditure which may be incurred by the council as a result and in consequence of the discharge of any such water by the Company into any of the said sewers or drains shall be repaid to the council by the Company ;

(xii) The Company shall within 24 hours of the discovery by them of the presence of water in the workings during construction of the works in such quantities as to necessitate any special measures for its removal give written notice of such discovery to the surveyor of the council and afford him or other the officer or servant of the council duly appointed for the purpose all reasonable facilities from time to time for entering upon and inspecting the works in order that the council may take such measures as they may deem to be necessary for the protection of highways sewers drains buildings and other matters or things within their control ;

(xiii) Where any part of any road or footway repairable by the council shall have been broken up or disturbed by the Company the Company shall make good the subsoil foundations and surface of such road or footway to the reasonable satisfaction of the council Provided that the reinstatement of any such road or footway broken up or disturbed by

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the Company shall in the first instance be of a temporary nature only and the permanent reinstatement to the reasonable satisfaction as aforesaid of any such road or footway shall be carried out by the council and the Company shall repay to the council the reasonable costs incurred by the council in so doing;

(xiv) It shall not be lawful for the Company in the exercise of the powers of this Act to place any hoardings on any part of any public highway in the borough except for such period as may be necessary and then only in such manner as shall be reasonably necessary and no such hoarding shall be erected except under the provisions of the Metropolis Management Act 1855 or any amendment thereof and the Company shall not affix exhibit or permit to be affixed or exhibited upon any such hoarding as aforesaid any advertisement or placard which is visible from the streets unless the same shall have been approved in writing by the council and if any such advertisement or placard be affixed or exhibited without such approval the council and their authorised officers may remove the same;

(xv) The Company shall at all times during the progress of the erection construction reconstruction or alteration of the works comply with all reasonable requirements of the council as to the provision of necessary barriers hoardings and other precautions for the due protection of the public and for the lighting and watching of such barriers and hoardings Provided that nothing in this section contained shall be deemed to impose any liability on the council for any loss or damage which may happen to or be caused by reason of any act carried out in accordance with the requirements of the council or work done under their supervision and the Company shall indemnify and save harmless the council in respect of any claims made on the council for loss or damage occasioned by reason of

any act default or omission of the Company or their contractors agents servants or workmen in connection with the works; A.D. 1929.

(xvi) The Company shall make full compensation to the council for any subsidence of or damage to any road or footway sewer drain or other work vested in under the control of or repairable by the council which may be caused by or in consequence of any act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the works or at any time thereafter;

(xvii) Any difference which may arise from time to time under the provisions of this subsection between the council and the Company shall be referred to and determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference :

- (2) So far as relates to all property acquired by the Company in the borough section 133 of the Lands Clauses Consolidation Act 1845 shall be read construed and applied as if references to the general rate were substituted for all references therein to the poor rate and the assessments on which any payment made by the Company under the said section 133 is based shall be inserted in the valuation list and any such payment shall be taken into account for the purpose of ascertaining the proceeds of any rate :
- (3) For the removal of doubt it is hereby declared that nothing in this Act shall empower the Company to afford a supply of electricity within or for use within any building office dwelling flat tenement hereditament or other premises upon lands acquired by the Company under the provisions of this Act which is not occupied by the Company Provided nevertheless that nothing in this section contained shall be deemed to or shall prejudice or derogate from any powers conferred on or exerciseable by the Company

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under any other Act to afford a supply of electricity in respect of any property or premises (other than as aforesaid) forming part of the undertaking of the Company.

For protec-
tion of
Hampstead
Borough
Council.

26. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the mayor aldermen and councillors of the metropolitan borough of Hampstead (in this section called "the council") shall except so far as may be otherwise agreed in writing between the Company and the council apply and have effect in reference to the exercise of the powers of this Act and the enactments incorporated therewith (that is to say) :—

(1) (i) Before commencing to make any part of the works which will involve interference with a public highway repairable by the council the Company shall consult the council as to the time when the works shall be commenced and as to the extent of the surface of the highway that it may be reasonably necessary for the Company to occupy in the construction of the works and as to the conditions under which they shall be constructed so as to reduce so far as possible inconvenience to the public and the works shall not be made and the surface of the highway shall not be occupied by the Company except at the time to the extent and in accordance with the conditions agreed between the Company and the council or in default of agreement determined by arbitration;

(ii) In the construction of any part of the works which will involve interference with a public highway repairable by the council or which will be within ten feet of the surface of such highway the Company shall not deviate upwards from the levels shown on the deposited sections without the consent of the council but such consent shall not be unreasonably withheld and in no case shall any part of any of the said works be constructed so as to leave a space of less than seventeen inches between the outer surface of the crown of the work and the surface of such highway;

(iii) The Company shall not open or make any ventilators air shafts or other similar openings in the roadway or footway of any public highway repairable by the council or in the footpath adjoining the Swiss Cottage Station of the Company and lying between that station and the public footpath at the corner of Belsize Road and Finchley Road; .A.D. 1929.

(iv) The works so far as they involve any interference with any public highway repairable by the council or with the footpath adjoining the Swiss Cottage Station of the Company and lying between that station and the public footpath at the corner of Belsize Road and Finchley Road shall after the commencement thereof be carried on so far as reasonably practicable continuously day and night and the Company shall use materials of such description and shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference and at no time shall any such public highway be interfered with so as to prevent at least one line of traffic proceeding along the same except between the hours of 1 a.m. and 5 a.m.;

(v) The works shall be constructed maintained and kept in proper repair by the Company so as at all times to support not only the ordinary traffic and any exceptional traffic lawfully using the streets within the metropolitan borough of Hampstead (in this section called "the borough") but also any apparatus which the council or their contractors may reasonably use for repairing the streets under the control of or repairable by the council and the Company shall indemnify the council against and make good to them all costs and expenses the council may reasonably incur or be put to in the maintenance or repair of any such last-mentioned streets by reason of any defect or insufficiency of the strength of the works or any neglect properly and effectually to construct maintain and keep in good repair the same or by reason of the construction of the works;

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(vi) It shall be lawful for the surveyor or other officer of the council duly appointed for the purpose at all reasonable times to enter upon and inspect any of the works in or under any public highway in the borough or repairable by the council during the execution thereof and the Company shall give to such surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of the works is attended with danger to any sewer drain or work belonging to or under the jurisdiction or control of the council the Company shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto and in the event of any difference arising between the council and the Company with reference thereto such difference shall be referred to arbitration;

(vii) The Company shall not alter disturb or in any way interfere with any refuge sewer drain main pipe wire lamp column or other property or works of the council or under their control or repairable by them without their consent in writing which shall not be unreasonably withheld and any alteration diversion or reconstruction of any such refuge sewer drain main pipe wire lamp column or other property or works that may be necessary shall be made by the council or the Company as the former shall think fit and any costs and expenses reasonably incurred by the council in so doing shall be repaid to the council by the Company;

(viii) If any extra expense be incurred by the council for the repair of any street or road of the council by reason of the extraordinary traffic in the making or construction of the works or by reason of the diversion thereto of traffic in consequence of the making or construction of such works the Company shall repay the amount of such expenses to the council;

(ix) The Company shall not without the consent of the council which shall not be

A.D. 1929.

unreasonably withheld permit during the construction of the works any cart or vehicle to be loaded or unloaded in Finchley Road with any subsoil or materials removed or required in connection with the works;

(x) The Company shall not deposit any subsoil or materials anywhere within the borough so as to cause any nuisance or obstruction to any person using the streets roads or footways within the borough;

(xi) The Company shall not discharge any water from any of the works into any sewer or drain vested in or under the control of the council except with the consent of the council in writing which shall not be unreasonably withheld and subject to such terms and conditions as the council may reasonably impose and any reasonable expenditure which may be incurred by the council as a result and in consequence of the discharge of any such water by the Company into any of the said sewers or drains shall be repaid to the council by the Company;

(xii) The Company shall within 24 hours of the discovery by them of the presence of water in the workings during construction of the works in such quantities as to necessitate any special measures for its removal give written notice of such discovery to the surveyor of the council and afford him or other the officer or servant of the council duly appointed for the purpose all reasonable facilities from time to time for entering upon and inspecting the works in order that the council may take such measures as they may deem to be necessary for the protection of highways sewers drains buildings and other matters or things within their control;

(xiii) Where any part of any road or footway repairable by the council shall have been broken up or disturbed by the Company the Company shall make good the subsoil foundations and surface of such road or footway to the reasonable satisfaction of the council Provided that the reinstatement of any such road or footway

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broken up or disturbed by the Company shall in the first instance be of a temporary nature only and the permanent reinstatement to the reasonable satisfaction as aforesaid of any such road or footway shall be carried out by the council and the Company shall repay to the council the reasonable costs incurred by the council in so doing;

(xiv) It shall not be lawful for the Company in the exercise of the powers of this Act to place any hoardings on any part of any public highway in the borough except for such period as may be necessary and then only in such manner as shall be reasonably necessary and no such hoarding shall be erected except under the provisions of the Metropolis Management Act 1855 or any amendment thereof and the Company shall not affix exhibit or permit to be affixed or exhibited upon any such hoarding as aforesaid any advertisement or placard which is visible from the streets unless the same shall have been approved in writing by the council and if any such advertisement or placard be affixed or exhibited without such approval the council and their authorised officers may remove the same;

(xv) The Company shall at all times during the progress of the erection construction reconstruction or alteration of the works comply with all reasonable requirements of the council as to the provision of necessary barriers hoardings and other precautions for the due protection of the public and for the lighting and watching of such barriers and hoardings. Provided that nothing in this section contained shall be deemed to impose any liability on the council for any loss or damage which may happen to or be caused by reason of any act carried out in accordance with the requirements of the council or work done under their supervision and the Company shall indemnify and save harmless the council in respect of any claims made on the council for loss or damage occasioned by reason of any act default or omission of the

Company or their contractors agents servants or workmen in connection with the works; A.D. 1929.

(xvi) The Company shall make full compensation to the council for any subsidence of or damage to any road or footway sewer drain or other work vested in under the control of or repairable by the council which may be caused by or in consequence of any act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the works or at any time thereafter;

(xvii) Any difference which may arise from time to time under the provisions of this subsection between the council and the Company shall be referred to and determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference :

- (2) So far as relates to all property acquired by the Company in the borough section 133 of the Lands Clauses Consolidation Act 1845 shall be read construed and applied as if references to the general rate were substituted for all references therein to the poor rate and the assessments on which any payment made by the Company under the said section 133 is based shall be inserted in the valuation list and any such payment shall be taken into account for the purpose of ascertaining the proceeds of any rate :
- (3) For the removal of doubt it is hereby declared that nothing in this Act shall empower the Company to afford a supply of electricity within or for use within any building office dwelling flat tenement hereditament or other premises upon lands acquired by the Company under the provisions of this Act which is not occupied by the Company Provided nevertheless that nothing in this section contained shall be deemed to or shall prejudice or derogate from any powers conferred on or exerciseable by the

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Company under any other Act to afford a supply of electricity in respect of any property or premises (other than as aforesaid) forming part of the undertaking of the Company.

For protec-
tion of
Wembley
Urban
District
Council.

27. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the urban district council of Wembley (in this section called "the council") shall except so far as may be otherwise agreed in writing between the Company and the council apply and have effect in reference to the exercise of the powers of this Act and the enactments incorporated therewith (that is to say) :—

(1) Not less than two months before commencing the construction of so much of Work No. 1 by this Act authorised as affects or involves interference with (a) the road in the district of the council known as Preston road (numbered 21 in the parish of Wembley on the deposited plans) or (b) the road and public footpath near Woodcock Dell in the parish of Wembley the Company shall give notice in writing to the council of their intention to construct such part of the said work :

(2) Within two months after the receipt of the notice referred to in subsection (1) of this section the council may give notice in writing to the Company of their desire—

(a) that the roadway over the bridge by which Preston road will be carried over the said Work No. 1 and the approaches thereto shall be made of such width between the fences thereof (not being less than 35 feet or more than 60 feet) as may be specified in the notice and that the existing bridge carrying the said road over the Company's existing country extension line from Baker Street to Aylesbury and beyond and the roadway over the same shall be widened to the like width between the fences ;

(b) that the arch or superstructure of the bridge for carrying the said Work No. 1 over the said road and public footpath near

Woodcock Dell shall be made with a span of such width (not exceeding 40 feet) as may be specified in the notice and that the existing bridge carrying the Company's existing country extension line from Baker Street to Aylesbury and beyond over the said road and public footpath shall be reconstructed so as to have the like span and so that the foundations shall be such as to permit of the lowering of the said road and public footpath to such a level as will make the height of such bridge over the same not less than 16 feet 6 inches : A.D. 1929.

- (3) The Company shall not raise any objection to an arrangement being made between the council and the London and North Eastern Railway Company for the widening of the existing bridges (forming continuations of the existing bridges referred to in subsection (2) of this section) by which the railway leased to that company is carried over or under the roads referred to in that subsection to the same respective widths as are specified in the notice given to the Company under that subsection :
- (4) (i) If the council shall make such arrangement with the London and North Eastern Railway Company as is referred to in subsection (3) of this section and shall give to the Company the notice referred to in subsection (2) of this section the Company shall when constructing the said part of the said Work No. 1 comply with the said notice and upon completion of the works referred to in the said notice the council shall pay to the Company the cost which may reasonably be incurred by the Company in complying with the said notice less—

(a) the sum actually expended by the Company in the provision of the abutments or supports and parapets of the bridge by which Preston Road will be carried over the said Work No. 1 ;

(b) a sum equal to the sum which it would have been necessary for the Company to expend if the roadway over the last-mentioned bridge had been made of a width of 35 feet less the

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cost of the abutments or supports and parapets;

(c) the sum actually expended by the Company in the provision of the abutments of the bridge by which the said Work No. 1 will be carried over the road and public footpath near Woodcock Dell;

(d) a sum equal to the sum which it would have been necessary for the Company to expend if the last mentioned bridge had been made of a width of 14 feet 9 inches less the cost of the abutments;

(ii) The council shall also from time to time pay to the Company the amount by which the cost of maintaining the roadway over the bridges by which Preston road is carried over the said Work No. 1 and the Company's existing country extension line from Baker Street to Aylesbury and beyond and the approaches to such bridges exceeds the cost which would have been incurred by the Company if such roadway and approaches had been made of a width of 35 feet:

- (5) If the Council shall be unable to make such arrangement with the London and North Eastern Railway Company as is referred to in subsection (3) of this section in relation to the bridge referred to in paragraph (b) of subsection (2) of this section and shall give to the Company the notice referred to in subsection (2) of this section the Company shall in carrying out the works construct the arch or superstructure of the bridge for carrying the said Work No. 1 over the said road and public footpath near Woodcock Dell with a span of such width (not exceeding 40 feet) as may be specified in the notice and upon the completion of such works the council shall pay to the Company the cost which may reasonably be incurred by the Company in complying with the said notice less—

(a) the sum actually expended by the Company in the provision of the abutments;

A.D. 1929.

(b) a sum equal to the sum which it would have been necessary for the Company to expend if the span of the said bridge had been made of a width of 14 feet 9 inches less the cost of the abutments :

- (6) If after the service of a notice under subsection (1) of this section the Company do not proceed with the construction of the works therein referred to within two years the notice together with any notice which may have been served by the council under the provisions of subsection (2) of this section shall be void and of no effect :
- (7) Before commencing the construction of any works required by the council under subsection (2) of this section the Company shall submit to the council plans and sections thereof for their reasonable approval together with an estimate of the cost which the council will be liable to pay under subsections (4) or (5) of this section and if the council shall not within twenty-one days after the submission of the plans and sections signify their approval or disapproval they shall be deemed to have approved thereof :
- (8) The works shown or described on any such plans and sections as aforesaid shall not be executed otherwise than in accordance with such plans and sections as may be so approved by the council or settled by arbitration as hereinafter provided :
- (9) All bridges to be constructed by the Company over any highway in the district of the council shall be so constructed as to prevent as far as reasonably practicable the dripping of water from the said bridges on to such highway and the Company shall construct and at all times thereafter maintain on both sides of every such bridge over any such highway parapets not less than four feet six inches in height :
- (10) The Company shall not interfere with the traffic on any road in the district of the council to any greater extent or for any longer period than shall be reasonably necessary for the purposes of the execution of the works :

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- (11) In constructing the said Work No. 1 over the public footpath in the district of the council immediately to the West of Northwick Park Station the Company shall extend the existing subway so that the extension shall have the same width and height as the existing subway and shall line the subway as extended with white glazed bricks or tiles and shall provide proper means for the drainage of the same and for the necessary lighting of the same during such hours as the said station is open for passenger traffic :
- (12) In constructing the said Work No. 1 the Company shall provide to the reasonable satisfaction of the council for the extension of the footbridge by which the public footway (No. 2 on the deposited plans in the district of the council) is carried over the existing railway of the Company :
- (13) Any works of the Company which will interfere with any street sewer drain sanitary convenience or other work vested in or belonging to the council shall be executed in accordance with plans and sections previously submitted to and reasonably approved by the council If the council do not within twenty-one days from the submission to them of any such plans and sections express to the Company in writing their approval or disapproval thereof they shall be deemed to have approved thereof All such works shall be done under the supervision (if given) and to the reasonable satisfaction of the council who may inspect by their surveyor or other officer any such works :
- (14) The Company shall not place any hoarding on any part of any highway in the district of the council except with the reasonable approval of the council and for such period and in such manner as may be necessary during and for the purpose of the execution of works by this Act authorised No advertisement shall be posted on any such hoarding :
- (15) In the case of any difference between the Company and the council with respect to any of

the matters in this section hereinbefore contained such difference shall be referred to and determined by an engineer to be appointed in default of agreement on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference : A.D. 1929.

(16) The provisions of the section of this Act of which the marginal note is "Use of sewer for removing water" shall not apply to any sewer or drain the use of which is limited to the discharge of surface water :

(17) (a) The council may in addition to any moneys now borrowed by them or which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any Act of Parliament borrow at interest the sums requisite for the purposes of any payments to be made by them under subsections (4) and (5) of this section Any moneys borrowed by the council under this Act and the interest payable thereon shall be respectively charged on the general rate fund and general rate of the district of the council and shall be repaid within forty years from the date of borrowing the same in accordance with the provisions of the Public Health Act 1875 as if the same were borrowed under that Act ;

(b) The clerk to the council shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the council under the provisions of this section ;

(c) The return shall show such particulars and shall be made up to such date and in such form as the Minister of Health may require and shall if so required by him be verified by a statutory declaration of the clerk to the council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall

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for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister of Health in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister of Health out of the High Court;

(d) If it appears to the Minister of Health by such a return as aforesaid or otherwise that the council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (where such instalment or annual payment or sum is required by this Act or by the Minister of Health in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than that authorised the Minister of Health may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the council shall notify the Minister of Health as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

For protection of
Middlesex
County
Council.

28. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the county council of the administrative county of Middlesex (in this section called "the council") shall except so far as may be otherwise agreed in writing between the Company and the council apply and have effect with reference to the exercise of the powers of this Act and the enactments incorporated therewith (that is to say):—

(1) The Company shall at their own expense construct the works necessary for carrying Sheepcote Road (No. 2 on the deposited plans in the parish of Wealdstone) over Work No. 1 by this

Act authorised (in this section called "Work No. 1") in the situation and of the width and dimensions shown on a plan (marked "Plan No. 1") signed in duplicate by Edward Arthur Wilson on behalf of the Company and by Alfred Dryland on behalf of the council one copy of which has been deposited with the Company and the other with the council:

A.D. 1929.
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- (2) The Company shall when required by the council surrender to the council free of cost the lands belonging to the Company coloured pink on a plan (marked "Plan No. 2") signed in duplicate and deposited as aforesaid for the purpose of widening the approaches to the bridge referred to in subsection (1) of this section:

Provided always that the widening of the said approaches so far as the same affects the railway of the Company shall be carried out by the council in accordance with plans and sections to be previously submitted to and reasonably approved by the Company:

- (3) If and when the council have agreed with the London and North Eastern Railway Company for the widening to 60 feet of the bridge which carries the railway leased to that company over Forty Lane (numbered 25 on the deposited plans in the parish of Wembley) with a headway of 16 feet 6 inches and for the widening to 75 feet of the bridge by which Sheepcote Road is carried over the railway leased to that company the Company shall (when required so to do by the council) reconstruct the bridge by which their existing country extension line from Baker Street to Aylesbury and beyond is carried over Forty Lane and the bridge by which Sheepcote Road is carried over their existing country extension line from Baker Street to Aylesbury and beyond so that the same shall have the same respective widths as those hereinbefore in this subsection mentioned. The reasonable cost of any works carried out by the Company under this subsection on the requirement of the council shall be borne by the council:

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- (4) The construction of the works referred to in subsection (1) of this section and the construction of the works required to carry Work No. 1 over Forty Lane shall if reasonably practicable be carried out contemporaneously with those referred to in subsection (3) of this section and the widening of the bridges of the London and North Eastern Railway Company. If it should be necessary for the Company to construct the works at Forty Lane otherwise than as contemplated by this subsection the council shall pay to the Company the reasonable cost of such retaining walls as may be necessary for the support of their railway between the abutments of the existing bridge and the abutments of the added portion :
- (5) The Company shall concur in arrangements being made between the council and the London and North Eastern Railway Company for the widening of the bridges of that company hereinbefore in this section referred to :
- (6) Before commencing the construction of any works required by the council under this section the Company shall submit to the council plans and sections thereof for their reasonable approval together with an estimate of the cost which the council will be liable to pay under subsection (3) of this section and if the council shall not within 21 days after the submission of the plans and sections signify their approval or disapproval they shall be deemed to have approved thereof :
- (7) The works shown or described on the plans and sections referred to in subsection (6) of this section shall not be executed otherwise than in accordance with such plans and sections as may be so approved by the council or settled by arbitration as hereinafter provided :
- (8) All bridges to be constructed by the Company over any highway vested in or repairable by the council shall be so constructed as to prevent so far as reasonably practicable the dripping of water from the said bridges on to such high-

way and the Company shall construct and at all times thereafter maintain on both sides of every such bridge over any such highway parapets not less than four feet six inches in height : A.D. 1929.

- (9) The Company shall not interfere with the traffic on any road in the county of Middlesex to any greater extent or for any longer period than shall be reasonably necessary for the purposes of the execution of the works :
- (10) Any works of the Company which will interfere with any street sewer drain sanitary convenience or other work vested in or belonging to the council shall be executed in accordance with plans and sections previously submitted to and reasonably approved by the council. If the council do not within twenty-one days from the submission to them of any such plans and sections express to the Company in writing their approval or disapproval thereof they shall be deemed to have approved thereof. All such works shall be done under the supervision (if given) and to the reasonable satisfaction of the council who may inspect by their surveyor or other officer any such works :
- (11) The Company shall not place any hoarding on any part of any highway vested in or repairable by the council except with the reasonable approval of the council and for such period and in such manner as may be necessary during and for the purpose of the execution of works by this Act authorised. No advertisement shall be posted on any such hoarding :
- (12) In the case of any difference between the Company and the council with respect to any of the matters in this section contained such difference shall be referred to and determined by an engineer to be appointed in default of agreement on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

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For protec-
tion of
London
Midland and
Scottish
Railway
Company.

29. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the railway company") shall unless otherwise agreed in writing between the Company and the railway company apply and have effect (that is to say) :—

- (1) The Company shall not without the consent of the principal engineer of the railway company (in this section referred to as "the principal engineer") which consent shall not be unreasonably withheld in constructing Work No. 1 by this Act authorised so far as the same will pass over the railways or works of the railway company deviate laterally from the lines shown on the deposited plans and the said Work No. 1 so far as the same will pass over the said railways or works shall be constructed so as to leave undisturbed at all times the lines of railway and other works connected therewith of the railway company and so as in no way to obstruct impede or interfere with the free and uninterrupted and safe use of the said railways of the railway company or with the traffic thereon and if any such obstruction or interference shall be caused by the acts or operations of the Company in the exercise of the powers of this Act the Company shall pay to the railway company full compensation in respect thereof :
- (2) The Company shall carry the said Work No. 1 where the same is intended to cross over the railways of the railway company by means of a steel girder bridge of three clear spans of the same width as the spans of the adjoining bridge of the Metropolitan Railway over the said railways of the railway company each of such spans to have a clear headway throughout of not less than 15 feet above the upper surface of the existing rails of the said railways at the said point of crossing :
- (3) If by reason of the construction of the said Work No. 1 it shall become necessary to add to or alter the signal or signals upon the said railways of the railway company the railway company may effect such additions or alterations and the

reasonable expense thereof shall be repaid to that company by the Company : A.D. 1929.
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- (4) Before the Company commence the construction of the said Work No. 1 any temporary works which may in the opinion of the principal engineer be reasonably necessary to ensure the stability of the said railways and works of the railway company may and shall be carried out by the railway company and the costs and expenses reasonably incurred by the railway company in connection therewith (including compensation payable to any workmen or the legal representatives or dependants of workmen who may be injured or killed whilst employed by the railway company exclusively in and about such works) shall be repaid by the Company to the railway company on demand :
- (5) The Company shall construct the said Work No. 1 where the same shall pass over the said railways of the railway company and all the works necessary and incident to the construction thereof (other than the temporary works to be carried out by the railway company under subsection (4) of this section) so far as they affect the railways and works of the railway company in accordance with the provisions of this section and according to plans sections and specifications previously submitted to and approved in writing by the principal engineer and the Company shall not commence the construction of the said Work No. 1 or enter upon or interfere with any land works or property belonging to the railway company until such plans sections and specifications have been so submitted and approved. Provided always that if the principal engineer shall for the period of one month neglect or refuse to approve such plans sections and specifications or shall disapprove the same then the said Work No. 1 and the said necessary and incidental works shall be constructed according to plans sections and specifications to be submitted to and settled by an arbitrator to be appointed as hereinafter provided :

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- (6) The said Work No. 1 and all works necessary or incident to the construction thereof so far as they affect the said railways or works of the railway company shall be executed by and in all things at the expense of the Company and under the supervision (if the same be given) and to the reasonable satisfaction of the principal engineer :
- (7) The Company shall not (except with the previous consent of the railway company under their common seal) purchase or acquire any lands of the railway company but the Company may purchase and take and the railway company shall sell and grant accordingly an easement or right of using so much of the lands of the latter company as may be necessary for the construction of the works in accordance with the provisions of this section :
- (8) During the construction of the said Work No. 1 across or affecting the said railways and works of the railway company the Company shall bear and on demand pay to that company the reasonable expense of the employment by them of a reasonably sufficient number of watchmen to be appointed by that company for watching their railways and the works thereof with reference to and during the execution of the intended works and for preventing as far as may be during the execution of the intended works all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Company or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise :
- (9) The Company shall at all times maintain the said Work No. 1 and all the works connected therewith and incident thereto by which the said work shall be carried across the said railways and works of the railway company in substantial repair and good order to the reasonable satisfaction in all respects of the principal engineer and if and whenever the Company

fail so to do after receiving reasonable notice in that behalf from the railway company the railway company may make and do in and upon as well the lands of the Company as their own lands all such works repairs and things as may be reasonably requisite in that behalf and the reasonable amount of their expenditure in that behalf shall be repaid to the railway company by the Company:

- (10) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the railway company all costs losses damages and expenses which may be occasioned to that company by reason of the construction or failure of the said Work No. 1 and the works in connection therewith or of any act or omission of the Company or of any of the persons in their employ or of their contractors or others and the Company will effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of such construction failure act or omission Provided always that the railway company shall give to the Company immediate notice of any such claim or demand and that no settlement or compromise thereof shall be made except with the consent of the Company who shall have the sole conduct of any settlement or compromise or of any proceedings necessary to resist the claim or demand:
- (11) If any question or difference shall arise between the Company and the railway company with respect to any matter under this section or concerning any plans sections or specifications submitted to the principal engineer under the foregoing provisions of this section such question or difference shall be referred to and settled by an engineer to be appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

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PART III.

LANDS &C.

Power to
take lands
for works.

30. Subject to the provisions of this Act the Company may enter upon take and use all or any part of the lands delineated upon the deposited plans and described in the deposited book of reference which they may require for the purposes of the works.

Further
powers for
acquisition
of lands.

31. Subject to the provisions of this Act the Company may for the purpose of enlarging and improving the Aldersgate and Barbican Station of the Company or for any purpose connected with the undertaking of the Company enter upon take and use the lands in the administrative county of London hereinafter referred to and delineated upon the deposited plans and described in the deposited book of reference.

The said lands in the administrative county of London in this section referred to are—

Metropolitan borough of Finsbury—

Premises being and known as Nos. 33 to 37
Charterhouse Square.

As to use of
subsoil of
streets.

32. Subject to the provisions of this Act the Company may for the purposes of the works or for the purpose of enlarging or improving any station of the Company appropriate and use without payment of compensation therefor the subsoil and under-surface of any public street road footway or place shown on the deposited plans and described in the deposited book of reference or so much thereof as shall be necessary for the purposes aforesaid but nothing herein contained shall restrict the right of the Company to the use of any public street road footway or place for purposes of ordinary traffic or of access to or in connection with any of their lands or buildings or take away or diminish any rights which they would have as owners or occupiers of lands or buildings abutting upon any such street road footway or place.

Provisions
as to cellars
under
streets not
referenced.

33. Nothing in this Act contained shall authorise the Company to enter upon take or use (except by agreement) any cellar or vault in or under any street belonging to or connected with any building unless such cellar or vault or the building with which it is connected is described in the deposited book of reference.

34. The powers for the compulsory purchase of lands by the Company under or for the purposes of this Act shall cease after the thirty-first day of October nineteen hundred and thirty-two.

Period for compulsory purchase of lands.

35. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to owners to grant easements &c.

36. And whereas in the construction of the works or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the works or in the exercise by the Company of the powers of this Act or each or any or them are hereinafter included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties” :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company

A.D. 1929.

such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder

without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1929.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

37. With respect to the lands shown on the deposited plans (other than public streets roads or footways) which are described in the Second Schedule to this Act the Company shall not be required to purchase or take such lands or any part of the surface thereof or any houses buildings and premises thereon or any cellar vault arches or other construction held or connected therewith but the Company may instead of purchasing and taking the same purchase and take an easement or right of using the subsoil and under-surface of any such lands and if the Company require to take use pull down Company may acquire easements only under lands &c. and purchase cellars &c.

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Act, 1929.

A.D. 1929, — or open any such cellar vault arches or other construction they may purchase take and use and the owners of and other persons interested in any such vault cellar arches or other construction shall sell the same for the purposes of such works and the purchase of any such easement or of any such cellar vault arch or other construction shall not in any case be deemed the purchase of a part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 But nothing in this section contained nor any dealing with the lands in pursuance of this section shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 and every case of compensation to be ascertained under this Act shall be ascertained and determined according to the provisions contained in the Lands Clauses Acts as modified by this Act.

Compensation in case of recent improvements &c.

38. In settling any question of disputed compensation payable under this Act by the Company the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and twenty-eight if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Costs of arbitration &c. in certain cases.

39. The tribunal shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving such sufficient particulars and in such sufficient time as aforesaid has been delivered and that the Company has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to

the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper in all the circumstances of the case Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

A.D. 1929.

40. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours and afterwards from time to time twelve hours previous notice enter upon and into the lands by this Act authorised to be taken and used by the Company or any of them for the purpose of surveying and valuing the said lands without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands.

Power to Company to enter upon property for survey and valuation.

41. The Company may sell the freehold or other interest of and in or grant building repairing or other leases of or dispose of on such terms and conditions or may retain hold and use for such purposes as they may think fit any lands already acquired by them or which under the authority of this Act may hereafter be acquired by them or in trust for them or any part thereof and which lands may not be required for the purposes of the undertaking of the Company and any such land shall not be deemed to be land not required for the purposes of such undertaking within the meaning of the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands.

Power to deal with lands not required for purposes of undertaking.

42. The powers rights privileges and authorities conferred on or granted to the Company by section 38 (Powers as to building on or over lands stations or railways of Company) of the Metropolitan Railway Act 1906 as amended by section 17 (For protection of Com-

Extending section 38 of Metropolitan Railway Act 1906 as amended by

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Act, 1929.

A.D. 1929. —
section 17 of
Metropoli-
tan Railway
Act 1910 to
lands of
Company.

missioners of Works) of the Metropolitan Railway Act 1910 shall extend and apply to and may be exercised by the Company with respect to any lands acquired by them under the authority of this Act and to the buildings to be erected thereon or any part thereof but subject always to the limitations conditions and provisions in the said section 38 contained so far as the same may be applicable.

As to pri-
vate rights
of way over
lands taken
compul-
sorily.

43. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts as modified by this Act with reference to the taking of lands otherwise than by agreement.

Power to
acquire
leasehold
interests.

44. The Company may acquire by agreement and hold for the purposes of their undertaking any interest less than the fee simple in any lands or any interest in any easement under any lands which they are authorised to acquire under the powers of any Act from time to time relating to the Company.

Purchase of
certain
lands by
Company
confirmed.

45. The Company may hold use and appropriate for the general purposes of their undertaking the lands hereinafter mentioned which have already been acquired by the Company and are shown on the plans which have been signed in duplicate by Sir Dennis Herbert the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which plans one copy has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and one copy in the Committee and Private Bill Office of the House of Commons and thereon coloured red and the expenditure by the Company in connection with the acquisition of the said lands is hereby sanctioned and confirmed and the said lands shall be deemed to be acquired under the powers of this Act.

The lands in this section hereinbefore referred to are—

In the county of Hertford—

Lands comprising 1777 square yards or thereabouts in the urban district of Rickmans-

worth forming part of the enclosures numbered 117 and 129 in the parish of Rickmansworth on the $\frac{1}{2500}$ Ordnance map (Hertfordshire sheet XLIV. 9 edition of 1914). A.D. 1929.
 —

In the county of Middlesex—

- (a) Lands comprising 271 square yards or thereabouts in the rural district of Uxbridge forming part of the enclosures numbered 740B and 744 in the parish of Hillingdon East on the $\frac{1}{2500}$ Ordnance map (Middlesex sheet IX. 16 edition of 1914);
- (b) Lands comprising 11,675 square yards or thereabouts partly in the urban district of Wembley and partly in the urban district of Kingsbury forming part of the enclosures numbered 376A and 398 in the parish of Wembley and 247 and 247B in the parish of Kingsbury on the $\frac{1}{2500}$ Ordnance map (Middlesex sheet XI. 13 edition of 1914).

46. The acquisition by the Company of the lands hereinafter mentioned (which have since been sold) and the expenditure by the Company in connection therewith is hereby sanctioned and confirmed. The lands in this section hereinbefore referred to are—

Purchase of certain further lands by Company confirmed.

In the county of Hertford—

- (a) Lands with the garage premises erected thereon being and now or formerly known as Cassiobury Garage Cassiobury Park Avenue in the borough of Watford;
- (b) Lands with the buildings and premises erected thereon being and known as No. 44 High Street in the borough of Watford together with the outbuildings thereto belonging and together with a strip of land having an average width of 80 feet or thereabouts abutting upon the northern side of Stone's Alley in the borough of Watford commencing at the western end of the land comprised in the said premises known as No. 44 High Street and terminating at Cassio Road in the borough of Watford.

A.D. 1929.

PART IV.

EXTENSION OF TIME.

Extension
of time for
compulsory
purchase of
lands.

47. The following periods (that is to say) :—

- (1) The period limited by the Act of 1911 for the compulsory purchase and taking of lands for the purposes of or in connection with the widening therein described and thereby authorised as such period was extended by section 53 (Revival and extension of time granted by Act of 1911 for compulsory purchase of land) of the Act of 1926;
- (2) The period limited by the Act of 1913 for the compulsory purchase and taking of lands required for the purposes of or in connection with the railway authorised by section 15 (Power to make works) of the Act of 1913 as such period was extended by the orders made by the Board of Trade or Minister of Transport under the Extension of Time Act 1915 (which orders are respectively dated the tenth day of November one thousand nine hundred and fifteen the eleventh day of May one thousand nine hundred and seventeen the fourth day of March one thousand nine hundred and eighteen the twenty-fifth day of February one thousand nine hundred and nineteen the sixteenth day of March one thousand nine hundred and twenty the thirteenth day of January one thousand nine hundred and twenty-one and the twenty-fifth day of November one thousand nine hundred and twenty-one) and by section 13 (Extension of time for compulsory purchase of lands) of the Act of 1923 and by section 54 (Extension of time for compulsory purchase of lands) of the Act of 1926;
- (3) The period limited by the Act of 1926 for the compulsory purchase and taking of lands required for the purposes of or in con-

nection with the new railways authorised by section 5 (Power to make works) of the Act of 1926; A.D. 1929.

are hereby respectively extended until the thirty-first day of October one thousand nine hundred and thirty-two.

48. The following periods (that is to say) :—

Extension
of time for
completion
of works.

(1) The period limited by the Act of 1911 for the completion of the widening therein described and thereby authorised as such period was extended by the orders made by the Board of Trade or Minister of Transport under the Extension of Time Act 1915 (which orders are respectively dated the tenth day of November one thousand nine hundred and fifteen the eleventh day of May one thousand nine hundred and seventeen the fourth day of March one thousand nine hundred and eighteen the twenty-fifth day of February one thousand nine hundred and nineteen the sixteenth day of March one thousand nine hundred and twenty the thirteenth day of January one thousand nine hundred and twenty-one and the twenty-fifth day of November one thousand nine hundred and twenty-one) and by section 14 (Extension of time for completion of works) of the Act of 1923 and section 55 (Extension of time for completion of works) of the Act of 1926;

(2) The period limited by the Act of 1913 for the completion of the railway authorised by the said section 15 of the Act of 1913 as such period was extended by the orders made by the Board of Trade or Minister of Transport under the Extension of Time Act 1915 (which orders are respectively dated the fourth day of March one thousand nine hundred and eighteen the twenty-fifth day of February one thousand nine hundred and nineteen the sixteenth day of March one thousand nine hundred and twenty the thirteenth day of January one thousand nine hundred and twenty-one and the twenty-fifth day of

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A.D. 1929.
—

November one thousand nine hundred and twenty-one) and by the said section 14 of the Act of 1923 and the said section 55 of the Act of 1926;

- (3) The period limited by the Act of 1926 for the completion of the new railways therein described and thereby authorised;

are hereby respectively extended until the thirty-first day of October one thousand nine hundred and thirty-four.

PART V.

FINANCE.

Power to
Company to
raise further
money.

49.—(1) The Company may from time to time subject to the provisions of this Act raise further money in all or any one or more of the following ways (that is to say) :—

- (a) By the issue of new ordinary stock;
- (b) By the issue of new preference stock;
- (c) By borrowing on mortgage of their undertaking;
- (d) By the creation and issue of debenture stock charged on their undertaking:

Provided always that the aggregate amount of the moneys so from time to time raised shall not exceed five hundred thousand pounds in the whole including any premiums or allowing for any discounts as the case may be on the issue of new ordinary stock or new preference stock or debenture stock.

(2) Section 113 of the Stamp Act 1891 as altered and amended by subsequent enactments shall apply in all respects to the increase of capital authorised by this section as though the issue of any new ordinary or new preference stock authorised by this section were the authorisation within the meaning of section 113 aforesaid of the increase of nominal capital of the Company to the amount of such new stock issued and in lieu of the stamped statement to be delivered thereunder there shall be delivered by the Company to the Commissioners of Inland Revenue a similar stamped statement on every occasion of and within one month after the issue of any new ordinary or new preference stock authorised by this

section relating to the amount of such issue and all the provisions of section 113 aforesaid (as altered and amended as aforesaid) shall apply thereto subject to the modification imposed by this section. A.D. 1929. —

50. Except as by this Act otherwise provided the capital in new ordinary or preference stock created by the Company under this Part of this Act and the new ordinary or preference stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new ordinary or preference stock were stock in that capital. New stock to be subject to same incidents as other shares or stock.

51. The capital in new ordinary or preference stock so created shall form part of the capital of the Company. New stock to form part of capital of Company.

52. Every person who becomes entitled to such new ordinary or preference stock shall in respect of the same be a holder of stock in the Company and shall be entitled to a dividend with the other holders of ordinary or preference stock of the same class or description proportioned to the whole amount from time to time paid on such new ordinary or preference stock. Dividend on new stock.

53. Subject to the provisions of any Act already passed by which the Company are authorised to raise capital by new ordinary or preference stock and to the provisions of this Act the Company may if they think fit raise by the creation and issue of new ordinary or preference stock of one and the same class all or any part of the aggregate capital which they are by such other Act and this Act respectively authorised to raise by the creation and issue of new ordinary or preference stock. New and existing stock may be of same class.

54. The interest of all mortgages and (notwithstanding anything in the provisions of Part III. of the Companies Clauses Act 1863 contained) of all debenture stock granted created or issued by the Company under any previous Act or this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or the Acts of Parliament or resolutions by which the mortgages and debenture stock were authorised) and As to debenture stock.

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A.D. 1929. shall have priority over all principal moneys secured by
— such mortgages Notice of the effect of this enactment
shall be endorsed on all mortgages and certificates of
debenture stock.

Provisions
as to issue of
debenture
stock.

55. Any debenture stock which under the provisions of this Act or any other Act or Acts of Parliament passed before or after the passing of this Act may be created or issued by the Company may if issued as a three and a half per centum debenture stock be of the same class and description in all respects as and may be in addition to and form part of the existing Metropolitan Railway three and a half per centum "A" debenture stock.

Redeemable
preference
stock and
debenture
stock.

56.—(1) The Company may from time to time create and issue so as to be redeemable at such times and in such manner and on and subject to such terms and conditions and to bear such rate or rates of dividend or interest as the Company may determine any preference stock or debenture stock (each of which are in this section included in the expression "stock") created under the powers of any Act from time to time relating to the Company.

(2) There shall be stated on each certificate of any such stock the times at which and the manner in which and the terms and conditions on and subject to which the stock is to be redeemed.

(3) For the purpose of providing money for paying off or redeeming any such stock the Company may create and issue other stock (either ordinary or preference) or debenture stock and either redeemable or not or re-issue any stock originally created and issued in pursuance of the provisions of this Act or of the Act of 1923 or of the Act of 1926 Provided always that the creation and issue of any particular class of stock in pursuance of the provisions of this section does not make the total amount of that stock issued exceed the amount of that class of stock which the Company are for the time being authorised to create and issue except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock.

(4) Section 64 (Redeemable debenture stock) of the Act of 1926 is hereby repealed.

57.—(1) The Company may from time to time set aside out of revenue after providing for the payment of interest on any mortgage or on any guaranteed or preference or debenture stock of the Company and for other fixed charges and obligations such sums as the Company may consider proper for the purpose of forming a fund for the redemption at maturity of any redeemable stock which the Company may have issued in pursuance of the provisions of this Act or of the Act of 1923 or of the Act of 1926 and which under the conditions of the issue thereof is redeemable wholly or partly in cash and the Company may invest any sums so set apart and the income therefrom in any investments in which trustees are for the time being by law authorised to invest trust funds or in any other investments (not being except as hereinafter provided securities of the Company) in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company.

A.D. 1929.
 —
 Redemption
 fund.

(2) All sums so set apart shall be applied for the redemption at maturity of any redeemable stock for the redemption of which they have been set apart or may if the Company think fit be applied in the purchase of any such stock at a price not exceeding the redemption price and any stock so purchased shall be cancelled.

(3) Section 65 (Redemption fund) of the Act of 1926 is hereby repealed.

58. Every provision in any Act passed before the present session of Parliament whereby the Company are authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of principal money or interest or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

For appoint-
 ment of a
 receiver.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount

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A.D. 1929. owing to the mortgagees by whom the application for a
— receiver is made shall not be less than ten thousand
pounds in the whole.

Existing
mortgages
to have
priority.

59. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament passed before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority or the *pari passu* rights of the interest of any debenture stock at any time created and issued by the Company.

Receipt in
case of
persons not
sui juris.

60. If any money is payable to a stockholder mortgagee or debenture stockholder of the Company being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power for
Company
to pay
interest out
of capital.

61.—(1) Notwithstanding anything in this Act or in any Act or Acts incorporated herewith the Company may out of any money by this Part of this Act authorised to be raised pay interest at such rate not exceeding four pounds per centum per annum as the Company may determine to any stockholder on the amount from time to time paid up on the stock held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the new works or such less period as the Company may determine but subject always to the conditions hereinafter stated (that is to say):—

(a) No such interest shall begin to accrue until the Company shall have deposited with the Minister of Transport a statutory declaration by two of the directors and the secretary of the Company that two thirds at least of the capital authorised by this Part of this Act in respect of which such interest may be paid has been actually issued and accepted and is held by stockholders who or whose executors administrators or assigns are legally liable for the same;

- (b) No such interest shall accrue in favour of any stockholder for any time during which any call on any of his stock is in arrear; A.D. 1929. —
- (c) The aggregate amount to be so paid for interest shall not exceed forty thousand pounds;
- (d) Notice that the Company have power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for stock and in every certificate of stock;
- (e) The yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

(2) The Company may charge to capital account the interest (accruing from the date or respective dates of borrowing or issue until the expiration of the time limited by this Act for the completion of the new works or for such less period as the Company may determine) on all moneys which the Company may raise by borrowing or by the issue of debenture stock for the purpose of providing funds for the construction or equipment of the works or other purposes to or on which capital may under the provisions of this Act or any other Act relating to the Company be applied or expended.

(3) The Company may charge to capital account the interest accruing from the date or respective dates of borrowing until the thirty-first day of March nineteen hundred and thirty on all moneys which the Company may raise or may have raised by borrowing for the purpose of providing funds for the construction or equipment of the building which the Company are constructing and equipping at or near the Company's Baker Street Station in the parish and metropolitan borough of St. Marylebone in the administrative county of London under powers already conferred upon the Company.

(4) Save as hereinbefore set forth no interest shall be paid out of any capital raised or moneys borrowed by the Company to any stockholder on the amount of the calls made in respect of the stock held by him but nothing in this Act shall prevent the Company from paying to any stockholder such interest on money

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A.D. 1929. advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Power for Company to apply corporate funds to purposes of Act.

62. The Company may apply to any of the purposes of this Act or to the general purposes of their undertaking being in all cases purposes to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by stock debenture stock or borrowing on mortgage by virtue of any Act relating to the Company and which may not be required for the purposes to which they are by any such Act made specially applicable.

Application of money by Company.

63. All money raised by the Company under this Act whether by stock debenture stock or borrowing shall be applied only for the purposes of this Act and for the purposes of the works or any of those works respectively authorised by the Act of 1911 the Act of 1913 and the Act of 1926 and for the general purposes of the undertaking of the Company to which capital is properly applicable or for any of such purposes.

PART VI.

POWERS IN RESPECT OF UNDERTAKING OF
JOINT COMMITTEE.

Power to Joint Committee to acquire additional land.

64. Subject to the provisions of this Act the Joint Committee may for the purpose of strengthening the railway embankment at or near Moor Park and Sandy Lodge Station enter upon take and use the lands hereinafter described which are delineated upon the deposited plans and described in the deposited book of reference (that is to say):—

In the county of Hertford—

A strip of land in the urban district of Rickmansworth on the north-east side of and adjoining the Harrow-on-the-Hill to Verney Junction Railway and bounded towards the north-west and south-east respectively by the northern and southern roadways leading to Moor Farm and having an average width of 60 feet or thereabouts and being part of the

enclosures numbered 157 and 158 in the A.D. 1929.
 parish of Rickmansworth on the $\frac{1}{2500}$
 Ordnance map (Hertfordshire sheet XLIV.
 9 edition of 1914).

65. The Joint Committee may hold use and appropriate for the general purposes of their undertaking the lands hereinafter mentioned which have already been acquired by the Joint Committee and are shown on the plan which has been signed in duplicate by Sir Dennis Herbert the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which plan one copy has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and one copy in the Committee and Private Bill Office of the House of Commons and thereon coloured red and the expenditure by the Joint Committee in connection with the acquisition of the said lands is hereby sanctioned and confirmed and the said lands shall be deemed to be acquired under the powers of this Act.

Purchase of
 certain
 lands by
 Joint
 Committee
 confirmed.

The lands in this section hereinbefore referred to are—

In the county of Hertford—

Lands with the house and premises erected thereon being and known as “Missendene” Nightingale Road in the urban district of Rickmansworth.

In the county of Middlesex—

Lands comprising 510 square yards or thereabouts in the parish of Pinner in the rural district of Hendon forming part of the enclosure numbered 621 in the parish of Pinner on the $\frac{1}{2500}$ Ordnance map (Middlesex sheet X. 7 edition of 1914).

66. The Joint Committee may stop up so much of the footpath in the borough of Aylesbury in the county of Buckingham leading from Walton Street to Stoke Road and California respectively as lies between the northern and southern boundary fences of the Harrow-on-the-Hill to Verney Junction Railway and thereupon all rights of way over the said portion of footpath shall be extinguished Provided that the Joint Committee shall make full compensation to all parties interested in

Power to
 Joint Com-
 mittee to
 stop up
 footpath.

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A.D. 1929. — respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts (as modified by this Act) with reference to the taking of lands otherwise than by agreement.

Application to this Part of certain provisions of Part III. of this Act.

67. The provisions of the sections of this Act of which the marginal notes are respectively as follows shall extend and apply to the Joint Committee and to the lands by this Part of this Act authorised to be acquired by them as if the said sections were enacted in this Part of this Act with the substitution of references to the Joint Committee for references to the Company (that is to say) :—

“ Period for compulsory purchase of lands ” ;

“ Compensation in case of recent improvements &c.” ;

“ Costs of arbitration &c. in certain cases ” ;

“ Power to Company to enter upon property for survey and valuation ” ;

“ As to private rights of way over lands taken compulsorily.”

Power to Joint Committee to apply funds to purposes of Act.

68. The Joint Committee may apply to the purposes of the sections of this Act of which the marginal notes are respectively “ Power to Joint Committee to acquire additional land ” and “ Power to Joint Committee to stop up footpath ” to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and are not required for the purposes to which they are by those Acts made specially applicable.

PART VII.

MISCELLANEOUS.

Powers of Act and of Act of 1926 may be exercised by directors.

69. Notwithstanding the provisions of this Act or the Act of 1926 or any enactments incorporated therewith respectively the directors of the Company may from time to time by virtue of this section and without further or other sanction or authority exercise the powers conferred upon the Company by this Act or the Act of 1926 or any enactments incorporated therewith respectively.

70. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

A.D. 1929.

—
 Deposit for
 future Bills
 not to be
 paid out of
 capital.

71. Nothing in this Act contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Provision as
 to general
 Railway
 Acts.

72. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those Commissioners on behalf of His Majesty first had and obtained for that purpose.

Crown
 rights.

73. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of
 Act.

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—

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS
ONLY MAY BE TAKEN.

Parish or other area. —	Numbers on deposited plans. —
WORK No. 1.	
Urban district of Wembley - - -	16 to 19 20 22 to 24 all inclusive.
WORK No. 2.	
Metropolitan borough of St. Marylebone	3.
WORK No. 3.	
Metropolitan borough of St. Marylebone	2 3 4.
Metropolitan borough of St. Pancras -	2 3 11.
WORK No. 4.	
Metropolitan borough of St. Pancras -	2 to 24 inclusive.
WORK No. 5.	
Metropolitan borough of St. Marylebone	8 9.
WORK No. 6.	
Metropolitan borough of Hampstead -	7 to 11 inclusive.

THE SECOND SCHEDULE.

A.D. 1929.

DESCRIBING LANDS IN RESPECT OF WHICH
EASEMENTS MAY BE TAKEN.

Parish or other area.	Numbers on deposited plans.
WORK No. 2.	
Metropolitan borough of St. Marylebone	3.
WORK No. 3.	
Metropolitan borough of St. Marylebone	2 3 4.
Metropolitan borough of St. Pancras	- 2 to 11 inclusive.
WORK No. 6.	
Metropolitan borough of Hampstead	- 7.

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